

**IN THE COURT OF THE XXIII ADDITIONAL CITY CIVIL AND SESSIONS
JUDGE
(COMMERCIAL COURT), BENGALURU
COMMERCIAL SUIT NO. 214 OF 2026**

Asterix Precision Castings Private Limited

... *PLAINTIFF*

VERSUS

Vindhya Fabtech Industries Private Limited

... *DEFENDANT*

**INTERIM APPLICATION UNDER ORDER XXXIX RULES 1 AND 2 READ
WITH SECTION 151 OF THE CODE OF CIVIL PROCEDURE, 1908**

1. The Applicant/Plaintiff has instituted the above suit for recovery of Rs. 14,97,124 against the Defendant, presently pending adjudication before this Hon'ble Court.
2. The Applicant has credible information that the Defendant is in the process of transferring its principal plant and machinery at Plot No. 71, Jigani Industrial Area, Anekal Taluk, Bengaluru - 560105, Karnataka to an associate entity, with a view to defeating any decree that may ultimately be passed in the suit.
3. Unless restrained by an order of injunction, the Defendant is likely to alienate, encumber or remove the said plant and machinery, rendering any decree infructuous and causing irreparable loss to the Applicant.
4. The balance of convenience lies in favour of the Applicant, and no prejudice would be caused to the Defendant by an order restraining alienation of identified assets pending disposal of the suit.

PRAYER

- a. Restrain the Defendant, its directors, agents and assigns from selling, alienating, encumbering or removing the plant and machinery installed at Plot No. 71, Jigani Industrial Area, Anekal Taluk, Bengaluru - 560105, Karnataka, pending disposal of the suit;
- b. Pass such further or other orders as this Hon'ble Court deems fit.

VERIFICATION

I, Aarav Krishnan, Authorised Signatory of the Applicant/Plaintiff, verify that the contents of this application are true and correct to my knowledge and belief.

Verified at Bengaluru on this the 2nd day of June, 2026.

For Asterix Precision Castings Private Limited
(Aarav Krishnan)
Authorised Signatory
Ms. Kavya Nataraj, Advocate for the Plaintiff
Enrolment No. KAR/2841/2014